



## **DECISION**

**Complaint No.** : POS/2209/2023/HYD/165

**Name and address of the complainant** : Mr. Chanesar, Goth Ghulam Hussain Nizami,  
Deh Verato, Hala.

**Name of the Agency Complained against** : Executive Engineer, Irrigation Hala Division.

**Name & Designation of Investigating Officer** : Syed Muhammad Sajjad Hyder, Regional Director,  
Regional Office, Hyderabad.

**Vetted by** : **Muhammad Naseer Jamali, Advisor-N**

**Subject** : COMPLAINT REGARDING NON-SUPPLY OF WATER AS PER SHARE LIST TO THE COMPLAINANT

Mr. Chanesar filed a complaint dated 22.02.2023 received through Wafaqi Mohtasib's Secretariat wherein he stated that he is khatedar of Water Course No.3L, Dabri Minor having land survey No.72/13 admeasuring 38 ghuntas but the Irrigation water is not being supplied to him as per his share and schedule of water distribution. Being aggrieved, he solicited intervention of this Institution.

### **Proceedings**

2. The complaint was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) and after receiving of mandatory documents and by condoning the delay.
3. This office issued a notice vide letter dated 14.04.2023 to the Executive Engineer, Irrigation Hala Division, for report, who in response informed vide letter dated 26.04.2023 that the site was visited by Canal Assistant and Abdar. It was found that the complainant is getting his due share of water and he has cultivated wheat crop. He annexed the photographs as an evidence.
4. The copy of agency's report was handed over to the complainant during hearing on 22.05.2023 but he was not satisfied with the report of the agency. The matter was taken up with the Executive Engineer, Irrigation Hala Division who informed vide letter dated 15.09.2023 that the complainant had invoked the jurisdiction of Honourable Sindh High Court Hyderabad vide C.P No. D-1629/2021 and in compliance to the orders of the court, his schedule of water was fixed on Friday 6:15 p.m to 6:45 p.m.
5. Later-on, the son of complainant named Mr. Waseem Ali S/o. Chanesar Nizamani informed that his father (complainant) died on 15.12.2023 and he did not want to pursue his case and requested to close the case.

### **Findings**

6. The investigation of the case revealed that the matter has already been adjudicated by the court.

### **Decision**

7. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of the Ombudsman for the Province of Sindh Act, 1991 (amended upto date), the complaint is disposed of as adjudicated by the court in term 21 (i) (f) of the Ombudsman Sindh (Investigation and Disposed of Complaint) Regulation, 2024.

Given under my hand and seal of the office



**Sd/-**  
(MUHAMMAD SOHAIL RAJPUT)  
Sitara-e-Imtiaz, PAS  
Ombudsman Sindh

Karachi, dated 04<sup>th</sup> December, 2025